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CHAPTER 13

An Act to amend the requirements of the Rural Water Supplies and Sewerage Act, 1944, with respect to undertakings under section one of that Act to make contributions towards expenses incurred by local authorities in connection with water supplies, sewerage and sewage disposal in rural localities; and for purposes connected with the matters aforesaid.

[29th March, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Any undertaking given by the Minister of Housing and Local Government or the Secretary of State after the commencement of this Act under section one of the Rural Water Supplies and Sewerage Act, 1944, to make a contribution towards the expenses incurred by a local authority in connection with water supplies, sewerage and sewage disposal in a rural locality shall provide for the making of the contribution in the form of such lump sum payment or payments, or such periodical payments towards revenue expenditure, as may appear to the said Minister or, as the case may be, to the Secretary of State to be appropriate; and accordingly subsections (2) and (3) of the said section one are hereby repealed.

Government contributions under Rural Water Supplies and Sewerage Act, 1944.
7 & 8 Geo. 6.
c. 26.

(2) Where, before the commencement of this Act, an undertaking has been given under the said section one to make a contribution in the form of a lump sum payment or payments, the said Minister or, as the case may be, the Secretary of State may, if he thinks fit, substitute for any payment or payments remaining to be paid in pursuance of that undertaking such periodical payments towards revenue expenditure as may appear to him to be equivalent thereto.

14 & 15 Geo. 6. c. 45. (3) For the purposes of the limit on the aggregate amount of contributions under the said section one imposed by subsection (5) of that section as amended by the Rural Water Supplies and Sewerage Act, 1951 (or, as the case may be, by the said subsection (5) as read with section seven of the said Act of 1944 and as amended by section twenty-one of the Water (Scotland) Act, 1949), in a case where contributions are made by way of a series of periodical payments there shall be taken into account only the capital amount which would be represented by those periodical payments if—

12, 13 & 14
Geo. 6. c. 31.

- (a) those payments were instalments of principal and interest combined; and
- (b) the interest were calculated, with half-yearly rests, at such rate as, at the date when the undertaking to make the contributions in question is given, is in force for a loan to the local authority in question from the Local Loans Fund; and
- (c) the said capital amount were calculated as at the date falling six months before the first payment of the series.

(4) In the valuation for rating purposes—

- (a) in England or Wales, of any hereditaments occupied by water undertakers; and
- (b) in Scotland, of any lands and heritages of water undertakers,

any contributions under the said section one shall be left out of account.

11 & 12 Geo. 6.
c. 26.
2 & 3 Eliz. 2.
c. 13.

(5) Any increase attributable to the provisions of this Act in the sums payable out of moneys provided by Parliament under the said section one, under Part I of the Local Government Act, 1948, or under the Local Government (Financial Provisions) (Scotland) Act, 1954, shall be paid out of moneys so provided.

Citation,
and extent.

2.—(1) This Act may be cited as the Rural Water Supplies and Sewerage Act, 1955.

(2) This Act, the Rural Water Supplies and Sewerage Acts, 1944 and 1951, and section twenty-one of the Water (Scotland) Act, 1949, may be cited together as the Rural Water Supplies and Sewerage Acts, 1944 to 1955.

(3) This Act shall not extend to Northern Ireland.

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